Fort Bend County District Court

Cause No. 2025-CV-0038

Rachel Solis, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	March 4, 2025
Plaintiff's counsel:	Jennifer Williams, Conley & Stephenson Law Group

PARTIES

Plaintiff Rachel Solis is an individual residing in Texas who was the driver of a vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to write and issue motor vehicle liability and uninsured/underinsured motorist coverage in the State of Texas, and it may be served through its registered agent as provided by law.

FACTS

On July 24, 2024, Plaintiff was lawfully stopped in traffic in Pearland, Texas, when the vehicle operated by an insured of Defendant struck the rear of Plaintiff's vehicle at a high rate of speed. The impact was sudden and forceful, causing Plaintiff's vehicle to be pushed forward and Plaintiff's body to be thrown against the steering wheel and restraint system. Plaintiff did not contribute to the collision in any way. Following the crash, Plaintiff reported the incident to Defendant and submitted a claim under the applicable policy. Defendant has failed to make a fair settlement offer and has delayed its evaluation of the claim without reasonable basis.

NEGLIGENCE

The insured driver owed Plaintiff a duty to operate his vehicle with reasonable care, to keep a proper lookout, to control speed, and to maintain a safe distance from vehicles ahead. The insured breached that duty by failing to stop and by following too closely, and that breach was the proximate cause of Plaintiff's injuries. Defendant is liable for the negligence of its insured under the terms of the policy and Texas law. Defendant further owes Plaintiff duties of good faith and fair dealing in the handling of this claim, and Defendant has breached those duties under Chapter 541 of the Texas Insurance Code by misrepresenting coverage and failing to promptly and fairly settle a claim once liability became reasonably clear.

DAMAGES

As a direct result of the collision, Plaintiff sustained a fracture of the wrist that reuqired medical evaluation, immobilization, and ongoing treatment. Plaintiff has incurred past and future medical expenses, lost wages, loss of earning capacity, physical pain, mental anguish, and physical impairment. Plaintiff seeks recovery of all damages allowed by Texas law, including actual damages and, where authorized, additional damages for knowing conduct. Plaintiff demands judgment against Defendant in the amount of $26,000.00, together with pre-judgment and post-judgment interest, court costs, and such other relief to which Plaintiff may be entitled.